

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
VICTOR CAPELLAN,

Plaintiff,

-against-

CITY OF NEW YORK, INDIVIDUALLY AND IN
THEIR OFFICIAL CAPACITIES AS POLICE
OFFICERS, JOSEPH WALSH, VINCENZO SPINOLA
AND JOHN OR JANE DOE 1-10,

Defendants.
-----X

Index No.

Plaintiff designates
Bronx County as the place of trial

The basis of the venue is where the
tort arose

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
February 3, 2020



SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard - Suite 201
Bayside, New York 11361
T: (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

JOSEPH WALSH, Police Officer
Shield No. 4294, Tax Reg. No. 6140848
Via the 52nd Precinct
3016 Webster Ave
The Bronx, NY 10467

VINCENZO SPINOLA, Sgt.
Via the 52nd Precinct
3016 Webster Ave
The Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
VICTOR CAPELLAN,

Index No.

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, INDIVIDUALLY AND IN
THEIR OFFICIAL CAPACITIES AS POLICE
OFFICERS, JOSEPH WALSH, VINCENZO SPINOLA
AND JOHN OR JANE DOE 1-10,

Defendants.
-----X

Plaintiff, VICTOR CAPELLAN, by his attorneys, Sim & DePaola, LLP, for his
complaint against the above Defendants, City of New York, individually and officially in their
capacity as police officers, JOSEPH WALSH, VINCENZO SPINOLA and John or Jane Doe 1-
10 alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief through 42 U.S.C. §§ 1983 and 1988 for the violations of his civil rights protected by the Constitution of the United States, as well as the Constitution and laws of the State of New York.
2. Plaintiff's claims arise from an January 25, 2019 incident, in which Defendants, acting under color of state law, unlawfully arrested and detained Plaintiff. As a direct and proximate results, Plaintiff was deprived of his liberty for approximately twenty (20) days and suffered serious physical and emotional injuries. Plaintiff was maliciously prosecuted and denied his right to fair trial, until the criminal proceeding was terminated in his favor on October 1, 2019, via the unconditional dismissal of all charges.

3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

4. Plaintiff, VICTOR CAPELLAN ("Plaintiff"), is Black male, who resides in Bronx County, within the City and State of New York.

5. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

6. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

7. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

8. Defendants JOSEPH WALSH and VINCENZO SPINOLA were, at all times here relevant, police officers, detectives or sergeants employed by the NYPD and as such were acting in the capacities of agents, servants and employees of the City of New York. Defendant WALSH was, at the time relevant herein, assigne to the NYPD's 52nd Precinct, located at 3016 Webster Avenue, The Bronx, New York 10467. Defendants WALSH and SPINOLA are being sued in their individual and official capacities.

9. At all times relevant Defendants, John or Jane Doe 1-10, were police officers, detectives, supervisors, policy makers or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants John or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants.

10. At all times relevant Defendants, John or Jane Doe 1-10, were police officers, detectives, supervisors, policy makers or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants John or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants. Plaintiff asserts that John or Jane Does 1-10 are readily identifiable, as the NYPD officers listed on the NYPD Tactical Team Plan, as the officers who participated or assisted in the execution of the subject search warrant, which is referenced herein.

11. At all times relevant herein, Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants, including WALSH and John or Jane Doe 1-10, are being sued in their individual and official capacities.

12. At all times here mentioned, Defendants, including WALSH, SPINOLA and John or John Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

13. On January 25, 2019, at approximately 4:00 a.m., Plaintiff was lawfully inside of 2547 Aqueduct Ave, Apartment No. ST1, The Bronx, New York.

14. On said date, time and location, Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, illegally said apartment without a search warrant or with a search warrant that procured by the use of false, fabricated, incomplete or misleading information.

15. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, proceeded to point their firearms at plaintiff's head and order him down to the ground.

16. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10 then violently slammed Plaintiff to the ground and proceeded to kick him multiple times about his head and back, causing Plaintiff to sustain a black eye and substantial pain to his face and back.

17. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10 then proceeded to violently contort plaintiff's body, arms and wrists, as they rear handcuffed him in an excessively tight fashion.

18. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10 then physically removed plaintiff against his will to the 52nd precinct, where he was criminally processed.

19. At all relevant times, Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, did not possess a warrant for plaintiff's arrest.

20. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, did not provide full and truthful facts, regarding the request for a search warrant, to District Attorney's Office or to the Presiding Judge to justify the issuance of a valid search warrant.

21. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, fabricated various materially relevant facts, so that they would obtain a search warrant for the subject premises.

22. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, never observed plaintiff in possession of any illicit substance or object, such as drugs or firearms, yet chose to

state so, regardless, so that they could justify an otherwise unlawful arrest and cause a criminal prosecution to be initiated against plaintiff.

23. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, ensured that Plaintiff would be maliciously prosecuted and denied his right to fair trial by submitting fabricated observations to prosecutors, namely that defendants observed plaintiff to be exercising dominion and control over a revolver pistol, crack cocaine, Percocet, and oxycontin that defendants allegedly recovered from said premises.

24. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, arrested plaintiff for possession of the aforementioned contraband and informed prosecutors that plaintiff was observed to be in possession of said contraband, despite the defendants' full knowledge that plaintiff never possessed said contraband and was never even observed to be in the same room as the alleged contraband.

25. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, arrested and caused the prosecution to be initiated against plaintiff, solely because of their desire to use plaintiff's arrest and criminal prosecution as leverage against their true targets and suspects, as well as their desire to obtain an additional arrest credit and overtime compensation.

26. At the 52nd precinct, plaintiff was illegally searched, including a strip-search with cavity inspection, questioned, photographed and fingerprinted by, or at the direction of Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10.

27. Defendant JOSEPH WALSH was Plaintiff's arresting officer and signed his criminal court complaint, under Criminal Court Docket No. 2019BX002233, in which he knowingly and falsely accused plaintiff of Criminal Possession of Weapon in the Second, Third and Fourth

Degrees. Criminal Possession of a Firearm and Criminal Possession of a Controlled Substance in the Seventh Degree.

28. Defendants, JOSEPH WALSH and VINCENZO SPINOLA, directly participated in or directed that the unfounded criminal investigation proceed against Plaintiff take place.

29. Plaintiff was thereafter arraigned, when he was formally charged with the aforementioned crime and held on bail, as he was unable afford the amount set by the court.

30. Plaintiff was unlawfully held in the custody of the NYPD or City of New York, from the date of his wrongful arrest, until his eventual release on, or about, February 13, 2019.

31. Plaintiff was compelled to return to court, multiple times, to contest the false charges levied against him, including Criminal Possession of a Weapon in the Second Degree and other related charges, until the criminal prosecution was terminated in plaintiff's favor, via the unconditional dismissal of all charges on, or about, October 1, 2019, after the Hon. Frances Y. Wang determined that there was no probable cause to believe that plaintiff had committed any crimes or violations of the law in her Decision and Order, dated September 23, 2019 and hereby incorporated by reference herein.

32. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10 did not possess probable cause or other justification for the arrest or seizure of Plaintiff's person.

33. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any crime, as Defendants WALSH and SPINOLA were fully aware that the search warrant, arrest and criminal prosecution were based upon fabricated information and the suppression of exculpatory evidence.

34. While Plaintiff was unlawfully detained, Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Criminal Possession of a Weapon in the second, third, and fourth degree; Criminal Possession of a firearm and Criminal Possession of a Controlled Substance in the seventh degree.

35. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely the fabrication of information used to obtain the search warrant and their desire to use plaintiff's unwarranted and unlawful prosecution as leverage to compel their true suspects and targets to plead guilty.

36. Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, suppressed evidence, namely their observations and knowledge that plaintiff was never observed in the same room to otherwise be in possession of any illicit items, and engaged in other conduct undertaken in bad faith, including their fabrications of observations that demonstrated plaintiff to be in possession of illegal items.

37. At all times relevant hereto, Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause to effectuate his arrest.

38. At all times relevant hereto, Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants WALSH observed others doing so, all in

furtherance of Plaintiff's wrongful arrest and subsequent malicious criminal prosecution and denial of right to fair trial.

39. Plaintiff asserts that the Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

40. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

41. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses.. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the

inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

42. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

43. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's

failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

44. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

45. Other articles include: (i) “Testifying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

46. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate

individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

47. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause.

48. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

49. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD, and City of New York.

50. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion

of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD, and City of New York.

51. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

52. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including WALSH, SPINOLA and John or Jane Doe 1-10.

53. As a direct and proximate result of the acts of Defendants, including WALSH, SPINOLA and John or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTIONUnlawful Search and Seizure Under
New York State Law

54. The above paragraphs are here incorporated by reference as though fully set forth.

55. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

56. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

57. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

58. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

59. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution.

60. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

61. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTIONUnlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

62. The above paragraphs are here incorporated by reference as though fully set forth.

63. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

64. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

65. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

66. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

67. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

68. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

69. The above paragraphs are here incorporated by reference as though fully set forth.

70. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

71. Plaintiff was conscious of his confinement.

72. Plaintiff did not consent to his confinement.

73. Plaintiff's arrest and false imprisonment was not otherwise privileged.

74. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

76. The above paragraphs are here incorporated by reference as though fully set forth.
77. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
78. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
79. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
80. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

81. The above paragraphs are here incorporated by reference as though fully set forth.
82. Defendants made Plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.
83. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.
84. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
85. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

86. The above paragraphs are here incorporated by reference as though fully set forth.
87. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
88. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
89. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

90. The above paragraphs are here incorporated by reference as though fully set forth.
91. Defendants initiated the prosecution against Plaintiff.
92. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
93. Defendants acted with malice, which may be inferred in the absence of probable cause.
94. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.
95. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
96. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION**Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants**

97. The above paragraphs are here incorporated by reference as though fully set forth.
98. Defendants initiated the prosecution against Plaintiff.
99. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
100. Defendants acted with malice, which may be inferred in the absence of probable cause.
101. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.
102. Accordingly, Defendants violated Plaintiff's Fourteenth Amendment rights.
103. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION**Malicious Abuse of Process Under
New York State Law**

104. The above paragraphs are here incorporated by reference as though fully set forth.
105. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
106. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
107. Defendants intended to inflict substantial harm upon Plaintiff.
108. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

109. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

111. The above paragraphs are here incorporated by reference as though fully set forth.

112. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

113. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

114. Defendants intended to inflict substantial harm upon Plaintiff.

115. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

116. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without the due process of law.

117. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

118. The above paragraphs are here incorporated by reference as though fully set forth herein.

119. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

120. Defendants forwarded said false information to the District Attorney's Office.

121. Defendants' actions resulted in post-arraignment deprivations to Plaintiff's liberty and freedom of movement.

122. Accordingly, Defendants violated Plaintiff's right to a fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

123. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

125. The above paragraphs are here incorporated by reference as though fully set forth.

126. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

127. Defendants forwarded said false information to the District Attorney's Office.

128. Defendants' actions resulted in post-arraignment deprivations to Plaintiff's liberty and freedom of movement.

129. Accordingly, Defendants violated Plaintiff's right to a fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution

130. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

131. The above paragraphs are here incorporated by reference as though fully set forth herein.
132. Plaintiff, as a Black male, is a member of a racial minority and protected class.
133. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.
134. Defendants also engaged in the selective of Plaintiff, in comparison to others similarly situated.
135. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.
136. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
137. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.
138. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
139. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
140. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

141. The above paragraphs are here incorporated by reference as though fully set forth herein.
142. Plaintiff, as a Black male, is a member of a racial minority and protected class.

143. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity
144. Defendants also selectively treated Plaintiff in comparison to others similarly situated.
145. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.
146. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
147. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.
148. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
149. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1981, 1983, 1985 and 1986 Against Individual Defendants

150. The above paragraphs are here incorporated by reference as though fully set forth herein.
151. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of the equal protection of the laws, or of the privileges and immunities under the laws.
152. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.
153. Plaintiff sustained injuries to his person or was deprived of rights or privileges of citizens of the United States.
154. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.

155. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.

156. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

157. The above paragraphs are here incorporated by reference as though fully set forth herein.

158. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

159. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

160. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

161. The above paragraphs are here incorporated by reference as though fully set forth herein.

162. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

163. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

164. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

165. The above paragraphs are here incorporated by reference as though fully set forth.

166. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

167. Defendant City breached those duties of care.

168. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

169. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

170. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

171. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

172. The above paragraphs are here incorporated by reference as though fully set forth.

173. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

174. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

175. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

176. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

177. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

178. Defendant City's conduct caused the violation of Plaintiff's civil rights, pursuant to Constitution of the United States.

179. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - t) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - u) Awarding Plaintiff reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and the New York Civil Rights Law;
- Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: February 3, 2020

Respectfully submitted,



SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff

42-40 Bell Blvd - Ste 201

Bayside, New York 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am an partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
February 3, 2020



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

VICTOR CAPELLAN,

Plaintiff,

-against-

CITY OF NEW YORK, INDIVIDUALLY AND IN THEIR OFFICIAL CAPACITIES AS
POLICE OFFICERS, JOSEPH WALSH, VINCENZO SPINOLA AND JOHN OR JANE DOE
1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for